

25STCV17210 25STCV17210

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-16

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Case Number: 25STCV17210 Hearing Date: September 16, 2026 Dept: 617

Dept.

617

Date:

9-16-26

Case

#: 25STCV17210

Trial

Date: 9-27-27

SANCTIONS

MOVING

PARTY: Plaintiff, Kinya Carr

RESPONDING

PARTY: Defendant, Rahel Shamash, Landmark Realtors, Inc., and Baroukh Shamash,
as Co-Trustee of the Solomon Family Trust

RELIEF

REQUESTED

Motion

for Sanctions

SUMMARY

OF ACTION

Plaintiff

Kinya Carr sued Defendants Rahel Shamash, Landmark Realtors, Inc., and Baroukh Shamash, as Co-Trustee of the Solomon Family Trust, asserting claims under the Fair Employment and Housing Act, among others. Plaintiff alleges that Defendants “constructively denied” Plaintiff’s rental application after they discovered she was eligible for rental assistance through the Section 8 Housing Choice Voucher Program.

RULING: Denied.

Plaintiff

moves for sanctions against Defendants under Code of Civil Procedure section 128.7 arguing that the previously filed motion to dismiss is “a procedurally unauthorized pleading” and frivolously relied on the “one-satisfaction rule” to delay the proceedings. Defendants oppose the motion, contending that their motion was not an unauthorized pleading because the Court treated it as a demurrer and that their one-satisfaction rule theory was not frivolous.[1] Defendants further move for attorney’s fees and costs incurred in opposing the instant motion. Plaintiff’s motion is denied because Defendants’ motion was not frivolous or brought for an improper purpose.

Code

of Civil Procedure section 128.7 requires that an attorney sign all pleadings, petitions, notices of motions, and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) Thus, by presenting a pleading or other similar paper to the court, an attorney is certifying that to the best of his or her knowledge, information, and belief, “formed after an inquiry reasonable under the circumstances,” all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2)

The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3)

The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4)

The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

(Code

Civ. Proc., § 128.7, subd. (b).)

The

section “authorizes trial courts to impose sanctions to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers.”

(Musaelian v. Adams (2009) 45

Cal.4th 512, 514.) A violation of any of these certifications may give rise to sanctions. (Eichenbaum v. Alon (2003)

106 Cal.App.4th 967, 976.) An objective standard of review applies to sections 128.5 and 128.7. (San Diegans for Open

Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318; Bockrath v. Aldrich Chemical Co., Inc. (1999)

21 Cal.4th 71, 82.) Whether a claim is meritless or for the sole purpose of harassment must be evaluated by examining whether the factual allegations of the claim had evidentiary support. (580

Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d

1, 22.) “Code of Civil Procedure section 128.7 imposes a lower threshold for sanctions than is required under Code of Civil Procedure section 128.5. This is because Code of Civil Procedure section 128.7 requires only that the conduct be ‘objectively unreasonable,’ while Code of Civil Procedure section 128.5 also requires ‘a showing of subjective bad faith.’” (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.)

Sanctions

are not warranted because the motion was not an unauthorized pleading nor was it frivolous or brought for an improper purpose of delay. The Court construed the motion to dismiss as a demurrer and considered it on the merits. (Sole Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 187, 193.) On the current record, the Court cannot conclude that Defendants’ one-satisfaction theory, which the Court did not reach in ruling on the demurrer, was frivolous or brought to delay the proceedings. Defendants’

argument rested on a plausible theory that Plaintiff's injury in her inability to obtain housing during a certain timespan constituted a single injury, which she was compensated for in different suits. "[O]ur adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments" and "sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous." (Peake v. Underwood (2014) 227 Cal.App.4th 428, 448.) Plaintiff's motion is therefore denied.

Defendants may separately move for attorney's fees and costs. The instant ruling in no way decides Defendants' entitlement to fees and costs.

Plaintiff to give notice.

[1] While

Plaintiff filed proof of service of her reply, she did not file the reply itself.